

July 22, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 21078

EXPIRATION DATE: 2020-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Saint Louis University
Saint Louis, MO
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the transportation in commerce of 45 freezers containing Category B Infectious Substances. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.199 in that alternative packaging is authorized as specified herein.
5. BASIS: This emergency special permit is based on the application of Saint Louis University dated July 14, 2020, submitted in accordance with § 107.117 and the determination it is necessary to prevent significant economic loss.

July 22, 2020

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Biological substance, Category B	6.2	UN3373	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Hazardous materials, described in paragraph 6., which are transported in freezers, must conform to the following provisions:

- (1) Materials must be packaged in watertight primary glass or plastic cryovials as a primary means of containment.
- (2) The cryovials must be packaged in a non-DOT specification fiberboard box.
- (3) The fiberboard boxes must be packaged into a freezer, which will serve as the outer packaging. The fiberboard boxes must be placed on stainless steel racks inside of the freezer or if the freezer does not contain racks additional packing materials must be used in the void spaces to ensure there is no movement of the boxes within the freezer during transport.
- (4) The edges of each freezer door must be sealed with tape, and the freezer wrapped in plastic prior to being placed into transportation. During transportation, the freezer doors must be closed locked and sealed to prevent opening during transportation.
- (5) Materials in each freezer must be kept frozen at all times.
- (6) The portable freezers must be constructed of heavy gauge, cold-rolled steel cabinets and have powder coated finishes for a uniform exterior surface that remains intact and is resistant to chipping and rusting.

July 22, 2020

(7) Each freezer must be marked in accordance with 49 CFR 173.199(a) (5).

(8) Packages must be prepared, transported, and unpacked by trained personnel.

b. OPERATIONAL CONTROLS:

(1) This special permit authorizes the transportation of 45 freezers containing biological substances from:

Saint Louis University's Medical School, 1402 S. Grand Blvd., St. Louis, MO 63104; and

Saint Louis University's Doisy Research Center, 1100 S. Grand Blvd., St. Louis, MO 63104

To:

Saint Louis University's Macelwane Hall, 3507 Laclede Ave., St. Louis, MO 63013 (Approximately 1.1 miles)

(2) Only one transport vehicle may be operated at once under this special permit.

(3) A maximum of five freezers may be in the transport vehicle.

(4) All freezers must be temperature-monitored during the transit.

(5) Packages must be loaded and transported in an exclusive-use transport vehicle.

(6) Each transport vehicle must be sealed, locked, and secured prior to movement.

(7) An itemized list of the contents of each freezer must be securely attached to the outside of the each freezer.

(8) Emergency refrigeration and spill response procedures must be in place and operational to address loss of refrigeration, delay in transport, or release of biological substances.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

July 22, 2020

materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenMoore/Steve H